
MUTUAL NON-DISCLOSURE AGREEMENT

Cross-Border Merger and Acquisition — Transaction Confidentiality

BETWEEN

Fenwick-Hargreaves Capital AG Bahnhofstrasse 22, 8001 Zurich, Switzerland | CHE-112.345.678 acting on behalf of itself and Dalton Ridge Holdings Ltd. (UEN: 201234567E), Singapore

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation

Reference: **FHC-NDA-MA-2024-007**

Date: **14 December 2024**

Governing Law: **Switzerland (primary) / Singapore (data provisions)**

Confidentiality Level: **STRICTLY CONFIDENTIAL — TRANSACTION SENSITIVE**

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1. DEFINITIONS

1.1 In this Agreement:

"Agreement" means this Mutual Non-Disclosure Agreement and all schedules hereto;

"Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where "control" means beneficial ownership of more than fifty percent (50%) of the voting interests;

"Confidential Information" has the meaning in Section 2;

"Deal Privilege Materials" means financial models, synergy analyses, integration plans, deal valuation materials, and other materials prepared by or for either party specifically in connection with the Transaction;

"Disclosing Party" means the party disclosing Confidential Information;

"Effective Date" means 14 December 2024;

"FINMA" means the Swiss Financial Market Supervisory Authority;

"MAS" means the Monetary Authority of Singapore;

"Need to Know Persons" means employees, officers, and professional advisers requiring access for the Transaction;

"Purpose" means the evaluation, negotiation, and potential consummation of a cross-border acquisition transaction (the "Transaction") involving the parties;

"Receiving Party" means the party receiving Confidential Information;

"Transaction" means the potential acquisition of a target entity by Fenwick-Hargreaves Capital AG or an Affiliate thereof, with NovaTech Solutions Inc. as a potential technology integration partner;

1.2 Interpretation is as customary in international commercial agreements.

2. CONFIDENTIAL INFORMATION

2.1 **"Confidential Information"** means all non-public information disclosed by either party to the other in connection with the Transaction, including: (a) financial statements, management accounts, and financial projections; (b) **Deal Privilege Materials**, including all financial models, synergy analyses, integration plans, and deal valuation materials prepared by either party in connection with the Transaction, whether prepared before or after the Effective Date and regardless of whether such materials would otherwise benefit from any exclusion under Section 2.3; (c) legal documents and regulatory correspondence; (d) personnel information; (e) customer and supplier data; (f) technical architecture and IP information; and (g) any summaries or analyses derived therefrom.

2.2 **Oral Disclosures.** Oral disclosures identified as confidential at the time of disclosure and confirmed in writing within ten (10) Business Days constitute Confidential Information.

2.3 **Exclusions.** Information does not constitute Confidential Information if it: (a) is publicly available other than through breach of this Agreement; (b) was known to the Receiving Party prior to disclosure; or (d) was received from a third party lawfully entitled to disclose it. **The independent development exclusion shall not apply to any information shared, disclosed, or discussed between the parties during the course of Transaction negotiations, due diligence, or related discussions. Any information that enters the knowledge of the Receiving Party's deal team during the Transaction shall remain Confidential Information regardless of any claim of independent development.**

3. OBLIGATIONS

3.1 Each party shall hold Confidential Information in strict confidence using the same degree of care as it applies to its own most sensitive information, in no event less than reasonable care, and use it solely for the Purpose.

3.2 **Non-Solicitation.** During the Term and for a period of **twenty-four (24) months** following the date of last disclosure of Confidential Information, each party (as Receiving Party) shall not, directly or indirectly, solicit, recruit, or employ any employee, officer, director, key contractor, or senior consultant of the other party who was identified, introduced to, or assessed through access to Confidential Information, without the prior written consent of the other party. This obligation applies regardless of whether the individual approaches the Receiving Party unsolicited. The non-solicitation obligation survives termination of this Agreement independently and is not affected by any termination.

4. TERM

4.1 Five (5) years from the Effective Date. Non-solicitation runs for twenty-four (24) months from date of last disclosure, independently.

5. PERMITTED DISCLOSURES — REGULATORY CONFLICT

5.1 Where disclosure is required by applicable law, regulation, or court order, the Receiving Party shall give maximum practicable prior written notice. **Where disclosure is required by FINMA or MAS pursuant to their statutory supervisory powers, such disclosure shall require the prior written consent of the Disclosing Party unless consent cannot lawfully be sought in the time available. The parties acknowledge that this consent requirement may be in tension with FINMA and MAS statutory obligations and agree to cooperate in good faith to resolve any such conflict.**

6. RETURN OR DESTRUCTION

6.1 Within ten (10) Business Days of request or termination, the Receiving Party shall return or destroy Confidential Information and provide written certification.

7. GOVERNING LAW — CONCURRENT JURISDICTION

7.1 **Governing Law.** This Agreement is primarily governed by the laws of Switzerland. Data-related provisions shall additionally be governed by Singapore law (Personal Data Protection Act 2012) to the extent applicable.

7.2 **Non-Exclusive Concurrent Jurisdiction.** The parties submit to the **non-exclusive concurrent jurisdiction** of: (i) the civil courts of Canton of Zurich, Switzerland; and (ii) the courts of the Republic of Singapore. Each party retains the right to bring proceedings in either jurisdiction at its sole election, without any obligation to elect one forum or waive any right to proceed in the other. The parties acknowledge that this concurrent jurisdiction arrangement may result in parallel proceedings.

8. NO LICENCE

8.1 No licence or intellectual property rights are transferred under this Agreement.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally

recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Fenwick-Hargreaves Capital AG:

Bahnhofstrasse 22, 8001 Zurich, Switzerland

Attention: Managing Director — Legal, Fenwick-Hargreaves Capital AG

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or

course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **Switzerland (primary); Singapore (data provisions)**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **Canton of Zurich, Switzerland (non-exclusive concurrent with Singapore)** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of Canton of Zurich, Switzerland (non-exclusive concurrent with Singapore) on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of

Fenwick-Hargreaves Capital AG

SIGNED for and on behalf of

NovaTech Solutions Inc.

Signature: _____

Signature: _____

Print Name: [NAME]

Print Name: [NAME]

Title: Managing Director

Title: General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____

Date: _____

Witness Name: _____

Witness Sig.: _____